

JUSTIFICATION FOR AN EXCEPTION TO FAIR OPPORTUNITY

1. Contracting Activity: Department of Veterans Affairs (VA)
Office of Procurement, Acquisition, and Logistics
Technology Acquisition Center
23 Christopher Way
Eatontown, NJ 07724
2. Description of Action: The proposed action is for a Firm-Fixed-Price delivery order to be issued under the National Aeronautics and Space Administration (NASA) Solutions for Enterprise-Wide Procurement (SEWP) V Governmentwide Acquisition Contract (GWAC) for brand name annual software license support for the BioPoint Patient Identification Wristband System.
3. Description of the Supplies or Services: The Department of Veterans Affairs (VA), Veterans Health Administration (VHA), Veterans Integrated Services Network (VISN) 21 has a requirement for brand name Advarra's BioPoint Patient Identification (ID) Wristband System (BioPoint) annual software license support that is currently being utilized at six VA Healthcare Systems (HCS) within VISN 21; VA Sierra Nevada HCS, VA Pacific Islands HCS, San Francisco VA HCS, VA Central California HCS, VA Northern California HCS, and the VA Palo Alto HCS. No hardware or software will be procured as a result of this action. This action is for annual support that includes: application version upgrades to include new features and enhanced functionality (VPN access required), upgrade installation documentation, and telephone support. The period of performance shall include a base period of 12 months with four (4) 12-month option periods, if exercised. The total estimated value for the proposed action is \$568,464.17, inclusive of options.
4. Statutory Authority: Pursuant to Federal Acquisition Regulation (FAR) 16.505(a)(4), the following brand name requirement is being justified and approved as an exception to fair opportunity under the statutory authority of Section 41 U.S.C. 4106(c)(2) as implemented by FAR 16.505(b)(2)(i)(B), entitled "Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized".
5. Rationale Supporting Use of Authority Cited Above: Based upon market research, as described in section 8 of this justification, it was determined that only brand name BioPoint has the capability to satisfy the Government's requirements. The current Biopoint system is a patient identification system. This technology allows users to create and print medical wristbands for the purpose of patient identification, security, and patient care. This technology utilizes color photographs, barcodes, color standardization, and warning indicators to help ensure the proper alignment of patients with treatment. This technology allows users the option to combine color patient photos, clinical warnings, and barcodes onto a single wristband. This technology can also integrate with various Health Information Systems in use by VISN 21. No other software can provide the necessary support for the currently utilized BioPoint system. Additionally, no other software manufacturer has access to the proprietary source code

necessary to provide annual software maintenance, support and upgrades required throughout VISN 21. Should the VA attempt to utilize or another manufacturer's software support, VISN 21 HCS would encounter unacceptable delays in patient identification, receiving patient information, delays in patient care and most significantly patient safety. Therefore, VA is seeking to maintain the current BioPoint system rather than to replace it with a new hardware/software solution. The cost of transitioning to a new product, inclusive of new equipment, manpower time, and training is estimated to be approximately \$3,000,000.00 for the six HCS within VISN 21. These duplicative costs for implementation, testing, training and change to the environment for any alternative solution would not be recouped through competition. Further, only the OEM, BioPoint, or its authorized resellers can provide the maintenance and installation services necessary to ensure the solution is properly installed and integrated with the existing hardware, due to proprietary constraints. No other sources have access to the source code or are authorized to provide maintenance and installation of software upgrades.

6. Efforts to Obtain Competition: Market research was conducted, details of which are addressed in the market research section of this document. This effort didn't yield any additional sources that could meet the Government's requirements. It was determined however that limited competition is available among authorized resellers for the brand name NetApp hardware, ancillary supplies, software operating system maintenance support and professional services for installation and configuration. In accordance with FAR 16.505(a)(4)(iii)(A)(1), this justification will be provided with the solicitation to all appropriate NASA SEWP V GWAC holders. Furthermore, in accordance with FAR 5.301, 16.505(b)(2)(ii)(D), and 16.505(a)(4)(iii), the award notice for this action will be synopsisized on the Contracting Opportunities website and this justification will be made publicly available within 14 days of award.

7. Actions to Increase Competition: The Government will continue to conduct market research to ascertain if there are changes in the market place that would enable future actions to be competed.

8. Market Research: The VA Subject Matter Experts (SMEs) conducted market research during August 2025 by reviewing similar software products to ascertain if other brands could meet VA's functionality requirements. Specifically, the Government's technical experts conducted web-based research and reviewed two patient wristband systems: Identisys and PDC Healthcare (PDC). While both companies offer patient wristband systems, they do not include the full range of functionalities that are already included in the brand name BioPoint system. Specifically, Identisys and PDC systems do not include a color picture of the patient themselves for visual verification of the patient. This is a critical function in the event the patient becomes incoherent or incapacitated, medical personnel are still able to identify and verify the patient's identity. However, this effort is not intended to replace the current wristband system, the purpose is only to procure the necessary annual software license support for the currently fielded BioPoint system. Only brand name BioPoint system annual software license support can provide the necessary maintenance and support for the BioPoint Identification Wristband System already being utilized across the VISN. In addition, VA SMEs regularly review industry trade publications and conduct internet research to ascertain if any other brand

name hardware or software is available. Based on all these market research efforts, the Government's technical experts have determined that only the aforementioned brand name BioPoint system annual software license support can meet all of the VA's needs.

9. Other Facts: None

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